

Court No. - 39

Case :- WRIT - C No. - 61368 of 2013

Petitioner :- Executive Engineer Dakshinanchal Vidyut Vitran Nigam Ltd.

Respondent :- The Electricity Consumer Grievances Redressal Forum & Anr.

Counsel for Petitioner :- Baleshwar Chaturvedi

Counsel for Respondent :- H.M. Srivastava

Hon'ble V.K. Shukla,J.

Hon'ble Suneet Kumar,J.

Shri H.M. Srivastava, Advocate assisted by Shri Neeraj Srivastava, Advocate has entered appearance on behalf of respondent no. 2.

Issue notice to respondent no. 1 returnable within next six weeks.

List thereafter along with record of Civil Misc. Writ Petition Nos. 61254 of 2013, 61317 of 2013, 61372 of 2013 and 61257 of 2013.

Order Date :- 8.11.2013

Shekhar



2025:AHC:230703-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 61368 of 2013

Executive Engineer Dakshinanchal Vidyut Vitran
Nigam Ltd.

.....Petitioner(s)

Versus

The Electricity Consumer Grievances Redressal
Forum And Anr.

.....Respondent(s)

Counsel for Petitioner(s)	:	Baleshwar Chaturvedi
Counsel for Respondent(s)	:	H.M. Srivastava

Court No. - 40

HON'BLE SARAL SRIVASTAVA, J.
HON'BLE SUDHANSHU CHAUHAN, J.

1. The present writ petition has been filed being aggrieved by the judgment and order dated 14.08.2013 passed by the Electricity Consumer Dispute Redressal Forum, Aligarh by means of which the electricity bill dated 07.09.2012 issued in respect of electricity connection belonging to respondent no. 2 has been set aside and the Chief Engineer (Distribution), Aligarh has been directed to determine the amount payable against the said electricity connection.
2. The controversy involved in the present case is that the respondent no.2 had filed a complaint case before the learned Forum alleging that the father of respondent no.2 had obtained a 5kw, LMV 2 electricity connection. The father of respondent no.2 had passed away on 29.01.2012. On the request of the respondent no.2, the Executive Engineer had installed a check meter on 02.09.2012 and the same was removed on 12.09.2012. Subsequently the Executive Engineer- petitioner had issued a notice raising a demand of Rs.1,83,516/- on account of overload. Against the demand so raised, the respondent no.2 had made a representation and was informed by letter of the Chief Engineer (Distribution) that such disputes were cognizable by learned Forum. In the above circumstances, the respondent no.2 had filed a complaint case.
3. The petitioner in his written reply had stated that during the inspection on 05.09.2012 the respondent no.2 was found to have been running the electricity connection on an overload of 787 Kw instead of sanctioned

255 kw for the past 51 months. Under the circumstances, in view of the provisions of para 6.9 of the Electricity Supply Code, 2005 the demand of Rs.1,83,516/- had been raised for the duration of 51 months. Further in view of the fact that as the check meter had been installed there was no requirement for preparation of list of the electric equipment installed at the premises of the respondent no.2.

4. The learned Forum while considering the fact that as to whether the respondent no.2 could have been held to be liable for the overload for a duration of 51 months on a average of 15.43 kw arrived at a finding that the assessment of revenue on the basis of the average overload was not in consonance with rules. In view of the fact that the consumption of electricity by the consumer varied from month to month. Moreover, as the demand had been raised in respect of 51 months there was no basis for calculating average overload for 51 months. Further it was held that if, the consumer was found to be consuming excess electricity than the sanctioned load, then it was incumbent upon the petitioner to include the amount payable against the overload in the monthly bills raised against the consumer at the tariff rate determined by the Electricity Regulatory Commission and on failure to raise such demand timely, it is the failure on the part of the officer of the concerned Distribution Division and an inquiry in this regard ought to have been conducted. The learned Forum while relying upon Section 56 of the Electricity Act, 2003 and Clause 6.15 of the U.P. Electricity Supply code, 2005 has held that the respondent no. 2 could not have been held liable to pay the alleged arrears on account of overload for the past 51 months. Under the circumstances the Forum had set aside the demand raised by means of letter dated 07.09.2022 and had further directed the Chief Engineer (Distribution), Aligarh to take appropriate action in respect of matter relating to failure to raise timely demands of revenue in respect of the excess load.

5. The petitioner being aggrieved by the impugned order has filed this writ petition on the ground that the demand of Rs.1,83,516/- was in due accordance with the provisions of para 6.9 of the U.P. Electricity Supply Code, 2005 and under the circumstances the impugned order dated 14.08.2013 is not sustainable in the eyes of law.

6. Per contra it has been claimed on behalf of the respondent no.2 that the impugned order is in due consonance with law as the check meter was

installed only for the duration of 02.09.2012 to 12.09.2012 and on the basis of the same the determination had been made in respect of 51 months. Even though under the rules the assessment could have only been made for the period of one year. In this regard the respondent no.2 has relied upon the letter dated 02.03.2013 issued by the Chief Engineer (Distribution), Aligarh. Besides it is also contended that in the electricity meter installed in the premises of respondent no.2 a demand of 9.8 kw (UC) was being shown whereas in the check meter installed a demand of 6.1 kw had been shown thereby clearly establishing the check meter was defective and had failed to record the correct reading. In this regard the respondent no.2 has relied upon the letter dated 09.03.2013 issued by the Chief Engineer (Distribution).

7. We have perused the records of the case.

8. Section 5.6 of the Electricity Act, 2003 reads as under:

"56. Disconnection of Supply in default of payment:-

(1).....

(2) Notwithstanding anything contained in any other law for the time being in force, no sum due from any consumer, under this section shall be recoverable after the period of two years from the date when such sum became first due unless such sum has been shown continuously as recoverable as arrears of charges for electricity supplied and the licensee shall not cut off the supply of the electricity. "

9. Further the explanation to Clause 6.15 (b) of the U.P. Electricity Supply Code, 2005 reads as under:-

"6.15 Recovery of Arrears:-

(a)....

(b)....

[(Explanation: The date from which such charges becomes 'first due', needs to be correctly interpreted. If as a result meter reading/ inspection of installation of consumer, such charges/ penalties levied as per this code or tariff schedule, such became first due counted from the due date of payment of such a bill, and such bill shall be provided to the consumer

not later than two billing cycle for that category of consumer)]"

10. We have also considered the letter dated 02.03.2013 issued on behalf of the Chief Engineer (Distribution) relevant part whereof reads as under:-

"प्रबन्ध निदेशक महोदय, द०वि०वि०नि०लि०, आगरा ने निर्देशित किया है कि विद्युत प्रदाय संहिता 2005 में दिये गये प्राविधानों के अनुसार अधिकतम एक वर्ष राजस्व निर्धारण किया जा सकता है। अतः मुझे आपसे यह कहने के निर्देश प्राप्त हुए हैं कि संलग्न पत्र में दिये गये निर्देशों के अनुरूप तत्काल राजस्व निर्धारण संशोधित कर इस कार्यालय के सूचनाधीन उपभोक्ता को अवगत करा दें।"

11. Thus, it is beyond doubt that it was not open for the petitioner to have raised the demand of overload in respect of 51 months. We cannot also lose sight of the fact that the Chief Engineer (Distribution) in his letter dated 09.03.2013 itself admitted that the check meter installed at the premises of the respondent no.2 was defective and was not recording the correct reading.

12. Thus, we are of the view that there was no infirmity in the impugned order dated 14.08.2013 passed by the learned Forum.

13. The writ petition lacks merits and is accordingly dismissed.

(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)

November 20, 2025

Nadeem